ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

NATIONAL DISABILITY INSURANCE SCHEME DIVISION

ART No. 2023/3361

VIDA REID

Applicant

v

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION

Respondent

VIDA REID - SHORT ADDENDUM IN REPLY AND CONSENT TO DETERMINATION ON THE PAPERS

Filed: 19 March 2026

1. These submissions are filed in reply to the Respondent's supplementary submissions dated 19 March 2026.

2. Mrs Reid consents to the Tribunal determining the interlocutory issue on the papers, and requests that this addendum be treated as her response to that course.

3. The Respondent's supplementary submissions do not engage with the central issue in Mrs Reid's matter.

4. Mrs Reid's case is not merely a complaint about procedural untidiness. It raises a distinct threshold issue concerning the scope of the internal review power.

5. Mrs Reid's original banning order was made under s 73ZN(2)(a)(i) of the National Disability Insurance Scheme Act 2013.

6. On internal review, the Commission purported to "vary" that order by changing its statutory basis to s 73ZN(2)(a)(iii) and broadening the scope of the prohibition.

7. Mrs Reid contends that this was not a true variation. It was, in substance, a materially different decision made on a materially different footing.

8. The Respondent's answer is to say, in effect, that because the Tribunal conducts merits review, the point does not matter. That is an inadequate response.

9. A merits review does not dissolve questions about the lawful scope of the power said to have been exercised on internal review. Nor does it answer the case-management question now before the Tribunal, namely whether Mrs Reid's distinct threshold issue should be submerged in a joined hearing dealing largely with overlapping factual matters arising in Simon Reid's and FFG's cases.

10. That issue is unique to Mrs Reid's matter. It does not arise in the same way in the other proceedings. For that reason alone, the Respondent's generic opposition to severance misses the point.

11. The Respondent's late concession that the June 2024 tender bundle was incomplete reinforces the need for caution. The Tribunal now knows that the proceedings have been managed on an incomplete documentary record in related matters. That fact does not directly determine Mrs Reid's severance application, but it does tell against over-compression, over-joinder, and assumptions of neat procedural efficiency.

12. The Respondent is a Commonwealth agency represented by AGS. Mrs Reid is self-represented. In such circumstances the Tribunal is entitled to expect candour, precision and procedural fairness from the Respondent, not an invitation to simply fold distinct legal issues into a single broad merits hearing and sort them out later.

13. The issue in Mrs Reid's matter is sufficiently discrete to warrant separate treatment.

14. Mrs Reid therefore maintains that matter 2023/3361 should be severed.

15. In the alternative, if the Tribunal is not minded to sever the proceeding at this stage, Mrs Reid seeks that the following question be determined as a separate preliminary issue before any joined substantive hearing: Whether the internal review decision dated 21 April 2023 lawfully "varied" the original banning order by changing its statutory basis from s 73ZN(2)(a)(i) to s 73ZN(2)(a)(iii) and broadening its scope.

16. If neither severance nor separate preliminary determination is ordered immediately, then any further timetable should be set on the footing that Mrs Reid's distinct threshold issue remains expressly preserved and is not taken to have been absorbed into a general joined merits process.

17. Mrs Reid otherwise remains ready to proceed efficiently.

Vida Reid
Applicant, self-represented